Amendment of section 12AB.

9. In section 12AB of the Income-tax Act,—

(*a*) in sub-section (1) with effect from the 1st day of October, 2023,—

(*A*) in clause (*b*),—

(*a*) in the opening portion, after the word, brackets and figure "sub-clause (*v*)", the words, brackets, letter and figures "or item (*B*) of sub-clause (*vi*)" shall be inserted;

(*b*) in sub-clause (*ii*), for item (*B*), the following item shall be substituted, namely:—

"(*B*) if he is not so satisfied, pass an order in writing,—

(*I*) in a case referred to in sub-clause (*ii*) or sub-clause (*iii*) or sub-clause (*v*) of clause (*ac*) of sub-section (1) of section 12A rejecting such application and also cancelling its registration;

(*II*) in a case referred to in sub-clause (*iv*) or in item (*B*) of sub-clause (*vi*) of sub-section (1) of section 12A, rejecting such application,

after affording a reasonable opportunity of being heard;";

(*B*) for clause (*c*), the following clause shall be substituted, namely:—

"(*c*) where the application is made under item (*A*) of sub-clause (*vi*) of the said clause or the application is made under sub-clause (*vi*) of the said clause, as it stood immediately before its amendment *vide* the Finance Act, 2023, pass an order in writing provisionally registering the trust or institution for a period of three years from the assessment year from which the registration is sought,";

(*b*) in sub-section (4), in the *Explanation*, in clause (*f*), for the words "attained finality.", the words "attained finality; or" shall be substituted;

(*c*) after clause (*f*), the following clause shall be inserted, namely:—

"(*g*) the application referred to in clause (*ac*) of sub-section (1) of section 12A is not complete or it contains false or incorrect information.".